

April 13, 2011



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 10517
(TENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of those hazardous materials authorized for transportation in DOT Specification 57 portable tanks and UN31A Intermediate Bulk Containers (IBCs) which are retested at least once every five years. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 180.605 and 180.352(b)(1) and (2) in that the retest period is every 2.5 years, except as specified herein.
5. BASIS: This special permit is based on the application of Nalco Chemical Company dated January 26, 2010 submitted in accordance with § 107.109 and additional information dated January 27, 2011.

April 13, 20116. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Those hazardous materials authorized for transportation in DOT Specification 57 portable tanks and UN31A IBCs	As appropriate	As appropriate	As appropriate

7. SAFETY CONTROL MEASURES: Prescribed packagings are DOT Specification 57 portable tanks and a UN31A IBC constructed, tested and operated as described within the petitioner's application. The material of construction is 10 gauge T304 or T316L stainless steel. The packagings will be of a 200 or 400 gallon capacity. The following safety control measures apply to the use of these packagings:

- a. The packagings are designed and constructed for liquids having a density of 16.2 pounds/gallon. Each packaging may not contain a liquid having a maximum density that exceeds 11 pounds/gallon.
- b. Only packagings specifically authorized by serial number for shipments of a product will be filled with the product as specified within the application.
- c. The packagings are authorized to be filled only by Nalco personnel in Nalco facilities.
- d. The packagings must pass the internal and external inspection procedure outlined in the application prior to each refilling.
- e. The packagings must be maintained in the controlled use, transportation and distribution as outlined in the application.
- f. TESTING: Each packaging must be retested and reinspected at least once every five years as prescribed in § 180.605 for DOT 57 portable tanks and

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§ 180.352(b)(1) and (2) for UN31A IBCs as appropriate.

8. SPECIAL PROVISIONS:

- a. Each packaging must be marked "DOT-SP 10517" in the same manner prescribed in § 180.605 for marking of the retest date.
- b. A person who is not a holder of this special permit who receives a packaging covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the packaging and it is reoffered for transportation in conformance with this special permit and the HMR.
- c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel.10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle and cargo vessel used to transport packages covered by this special permit.11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

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No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 immediate notice of certain hazardous materials incidents, and 171.16 detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO:dl